

“Outlook” by Marta Zemojtel

Final Project for Penal Policy (Law 401D) with Prof. Michael Jackson

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The mixed media piece, entitled “Outlook”, was inspired by my conversations with inmates at *Matsqui Institution*, along with some of the most poignant and impactful passages from Professor Jackson’s book *Justice Behind the Walls*. The following is a brief explanation of each element of the art piece, both in terms of process and substantive meaning.

Background

The piece started off as a blank canvas, covered with acrylic paint to create an environment which is representative of both the legal and personal journeys of the subjects of *Justice Behind the Walls* and the inmates we met in February 2016 at *Matsqui Institution*.

The majority of the surface is dark grey in color, with varying gradations of black and white, to convey the dark, inconsistent, dismal nature of existence for many inmates faced with the complexities of both institutional life and their own psyches. The darkness represents the pain, both physical and emotional, of incarceration. The gloomy scene is a testament to the seemingly insurmountable bureaucratic, hierarchical and political hurdles inmates face with minimal support, and the impact of this reality on their outlook on the outside world, the penal system, and most profoundly, their role in society both during and after imprisonment.

The light blue top corner, with slices of sunlight peeking through illustrates the hope, knowledge, progress, and positive realizations that have been, and continue to be made in the realm of penal policy. The corner is also symbolic of those stories which contain threads of both legal and personal success—the narratives of *the kept* who have been able

to reclaim their lives, whether through freedom outside the walls, or in small steps within the walls of the prison.

Chain Link Fence

The fence carries with it the obvious representation of prison as a restricted *and* restricting physical space. Rather than using a ready-made fence section purchased at a hardware store, I constructed the links by hand in order to engage on a deeper and more personal level with the symbolism behind how we, as a society, construct prisons physically and sociologically. Making the fence was symbolic in that the process allowed me to reflect on the role I have, both as a citizen and as a legal advocate, in the way the narrative around imprisonment is constructed. The time needed to construct the fence was useful in remembering the written and spoken stories I had the privilege of learning, and what they revealed about the legal construction of incarceration in Canada.

Chain “Birds”

The “birds” flying into the horizon were also constructed by hand from the same wire material used for the fence. They, in fact, constitute part of the fence (as is exemplified by the one “bird”/fence fragment that appears to be breaking off to fly into the distance. The birds are representative of freedom, with the caveat that they are still made from (and thus deeply intertwined with) the material that restricts and imprisons. In addition to hope, the birds are a reflection on the immense impact, scars, and difficult stories and scenes that inevitably accompany *the kept* throughout their lives, no matter how far they are able to physically remove themselves from the prison environment. Mental, physical, social, financial, and familial weights continue to tie prisoners to the prison context long after they pass the fences of the property.

Quotes

The collection of quotes found in the links of the fence were notes taken during our visit to *Matsqui Institution* as well as select passages from *Justice Behind the Walls* which impacted me personally and professionally. The quotes from the inmates at *Matsqui* reflect the concerns and considerations of prisoners about themes of self, home, societal

biases about imprisonment, and first hand experiences of injustice within the system. The quotes from the book are a few of my favorite moments from Professor Jackson's narrative, which will continue on with me as a reminder that despite completing my third year of law school, I have a duty to continue my legal education, revisit these passages, and reflect on how I can evolve as an effective advocate for the people who transcend the boundaries of their own vulnerability to share their stories, fears, and concerns in hopes of changing the status quo within prisons.

Perspective of the piece

While we have spent time looking *in* at the realities of prisons, I wanted the perspective of this piece to reflect an observer looking *out* at the world from behind the fence of an institution, as an homage to the multitude of incredibly uplifting inmates we met both in real life and through the pages of *Justice Behind the Walls*. The outward looking perspective and the title of the piece ("Outlook") are meant to acknowledge the importance of listening to and learning these stories, recognizing the incredible impact this area of law has on individuals and the damage it can do to even the strongest psyches. The piece is also meant to honour the perspectives of those who are most impacted by imprisonment and the legal structures that support it. It is my firm belief that no other area of law is so inextricably tied to the outlook of its subjects in both understanding the current realities and finding solutions to the deeply entrenched problems that infiltrate it.

*I was proud to show the piece to some friends and colleagues before submitting it. One friend, employed at the *Alouette Correctional Centre for Women* requested my permission to share (a photo of) the piece to new recruits she was working with at the Centre. I was honored to share the piece and my new knowledge with others, as the beginning of a conversation about the many facets of the complex legal, sociological, and cultural issues of penal policy.